



CHAPTER 5.

An Act to repeal certain restrictions on the amount of special Greenwich Hospital pensions and of expenditure out of Greenwich Hospital Funds for the education and maintenance of children, and to make further provision for the granting out of those Funds of widows' pensions, children's allowances and gratuities to dependants.

[18th February 1947.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

- 1.—(1) The following provisions of the Greenwich Hospital Acts, 1865 to 1942, that is to say—
- (a) so much of section five of the Greenwich Hospital Act, 1869, as limits the amount of the special Greenwich Hospital pensions which may be appointed to non-commissioned officers and men admitted to the benefits of Greenwich Hospital in lieu of maintenance; .
 - (b) so much of section four of the Greenwich Hospital Act, 1872, as limits the number of daughters of warrant officers, non-commissioned officers and men of the Royal Navy and Royal Marines who at any one time may be educated and maintained under that section; and
 - (c) so much of section five of the said Act of 1872 as limits the amount that may be expended under the said section five on the education and maintenance of any son or daughter of a deceased or distressed commissioned officer of the Royal Navy or Royal Marines,
- shall cease to have effect.

Removal of
restrictions
on amount of
special
Greenwich
Hospital
pensions and
of expenditure
on education
and mainten-
ance of
children.
32 & 33 Vict.
c. 44.
35 & 36 Vict.
c. 67.

10 & 11 Geo. 5.
c. 36. (2) In accordance with sub-paragraph (a) of the foregoing subsection, section six of the Pensions (Increase) Act, 1920 and paragraph (b) of subsection (1) of section seven of the Pensions (Increase) Act, 1944 (which provide for disregarding certain increases of pensions in determining the amount of, or eligibility for, such special Greenwich Hospital pensions as aforesaid) are hereby repealed.

Extension of
power to
grant pensions,
etc., under
46 & 47 Vict.
c. 32, s. 2.

2.—(1) The power of the Admiralty, under section two of the Greenwich Hospital Act, 1883, to grant pensions to widows, allowances to children, and gratuities to dependants of certain non-commissioned and petty officers and men dying in the service of the Crown shall include power to grant such pensions, allowances and gratuities in the case of any person deceased, whether before or after the passing of this Act, while serving, or having served, as a non-commissioned officer, petty officer or man of the Royal Navy or Royal Marines or of any naval reserve force, so however that pensions, allowances and gratuities shall not be granted by virtue of this section except in accordance with regulations of the Admiralty made under section four of the said Act of 1883.

(2) In accordance with the last foregoing subsection, section two of the said Act of 1883 shall be amended so as to have effect as set out in the First Schedule to this Act.

Short title,
citation and
repeals.

3.—(1) This Act may be cited as the Greenwich Hospital Act, 1947, and the Greenwich Hospital Acts, 1865 to 1942 and this Act may be cited together as the Greenwich Hospital Acts, 1865 to 1947.

(2) The enactments set out in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULES.

FIRST SCHEDULE.

Section 2.

*Section 2 of 46 & 47 Vict. c. 32 as amended by
section 2 of this Act.*

2.—(1) The Admiralty may out of the funds of Greenwich Hospital from time to time grant pensions to widows and allowances to children of any person deceased, whether before or after the passing of the Greenwich Hospital Act, 1947, while serving, or having served, as a non-commissioned officer, petty officer or man of the Royal Navy or Royal Marines or of any naval reserve force.

(2) The Admiralty may out of the said funds from time to time grant gratuities to parents or other relatives dependent on any such person deceased, as aforesaid, so however that the total expenditure in such gratuities shall not exceed in any one year the sum of five hundred pounds.

(3) Pensions, allowances and gratuities shall not be granted by virtue of this section except in accordance with regulations of the Admiralty made under section four of this Act, so however that nothing in this subsection shall affect any pension, allowance or gratuity granted before the passing of the Greenwich Hospital Act, 1947.

SECOND SCHEDULE.

Section 3.

Enactments Repealed.

Session and Chapter.	Short Title.	Extent of Repeal.
32 & 33 Vict. c. 44.	The Greenwich Hospital Act 1869.	In section five, the words from "but so that" to the end of the section.
35 & 36 Vict. c. 67.	The Greenwich Hospital Act 1872.	In section four, the words from "subject to" to the end of the section; in section five the words from "subject to" to the end of the section.
61 & 62 Vict. c. 24.	The Greenwich Hospital Act 1898.	Section four.
10 & 11 Geo. 5. c. 36.	The Pensions (Increase) Act, 1920.	Section six.
7 & 8 Geo. 6. c. 21.	The Pensions (Increase) Act, 1944.	In section seven, in subsection (1), the words from the second "and" to the end of the subsection.